

defendant . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc., § 437c, subd. (p); see also *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850 (*Aguilar*) [“a plaintiff bears the burden of persuasion that ‘each element of’ the ‘cause of action’ in question has been ‘proved,’ and hence that ‘there is no defense’ thereto”].)

Through the Complaint, Plaintiff asserts a single cause of action for breach of contract against Defendant. The Court finds that Plaintiff has satisfied its initial burden of producing facts sufficient to make a prima facie showing as to each element of the claim. (See Declaration of Plaintiff, ¶¶ 4-11, Exhs. A-C.)⁴ Defendant failed to file anything in opposition to the motion, and therefore fails to show a triable question of material fact requiring trial in the matter.

Based on the foregoing, the Motion is GRANTED.

The Court finds that Plaintiff has made a prima facie showing of damages in the amount prayed for through the Complaint (\$59,391.29). The Court further finds that items listed on Plaintiff’s Memorandum of Costs, filed May 7, 2026, appear proper on their face (\$1,025.46). (See *Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1267 [held: if the items listed in the memorandum of costs appear proper on their face, then the verified statement is *prima facie* evidence of their propriety].)

Based on the foregoing, the Court will sign the Proposed Judgment.

PROBATE CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Conservatorship of James Michael Feeney

25PR000173

- [1] FIRST ACCOUNT AND REPORT OF CONSERVATORS OF PERSON AND ESTATE
- [2] REVIEW HEARING

TENTATIVE RULING: Both matters are CONTINUED to September 24, 2026, at 8:30 a.m. in Dept. B to allow the Conservators to file: (1) Notice of Conservatee’s Rights (Judicial Council form GC-341) mailed to relatives of the Conservatee within the second degree. The Clerk is directed to send notice to the parties.

⁴ The Court notes that Plaintiff’s Separate Statement on file is missing page 2, which appears to contain Plaintiff’s undisputed material facts, nos. 1-4. Because the record is brief, and because Plaintiff made the dispositive evidence obvious to the Court and opposing party through its Memorandum and Declaration, the Court elects to exercise its discretion to accept the less than perfect separate statement and consider the evidence outside of the filed-version of the Separate Statement. (See *San Diego Watercrafts, Inc. v. Wells Fargo Bank, N.A.* (2002) 102 Cal.App.4th 308, 316 [noting, in dicta, court’s discretion to consider evidence not referenced in moving party’s separate statement where the facts are relatively simple and the evidence was clearly called to the attention of court and counsel].)

CIVIL LAW & MOTION CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Susan Scurich et al v. Northgate Cottages at Silverado, Inc. et al

24CV000076

MOTION TO BE RELIEVED AS COUNSEL

TENTATIVE RULING: The matter is CONTINUED to September 3, 2026, at 8:30 a.m. in Dept. B.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

“[California Rules of Court, rule] 3.1362 contains a number of technical requirements for a motion to be relieved as counsel that are frequently overlooked, resulting in these motions having to be continued for compliance.” (Weil & Brown, Cal. Practice Guide Civ. Pro. Before Trial (Rutter 2026) § 9:385.1, p. 9(I)-185 (Civ. Pro Before Trial).) Among these, the Notice of Motion and Declaration of Counsel *must* be submitted on Judicial Council forms. (See Cal. Rules of Ct., rule 3.1362(a), and (c).)

On August 24, 2026, counsel for Plaintiffs appeared *ex parte* and applied for an order to be relieved as counsel. Judicial Council form Notice of Motion and Declarations are attached *as exhibits* to the Declaration of A. Jeanne Grove filed in support of the Application (Grove Decl.). However, counsel failed to file them. Because a Motion to be Relieved as Counsel is *required* to be made by use of these forms, the *ex parte* Application cannot be read as constituting the Motion, here.⁵ As such, the Court is without authority to grant the relief requested. (See Cal. Rules of Ct., rule 3.1362; see also Civ. Pro. Before Trial at § 9.385.11 [“Judges should never grant the motion if it is not on the Judicial Council forms”].)

Moreover, at the August 24, 2026, hearing, the parties indicated a willingness to continue the trial currently set for September 3, 2026. However, there remains no Motion to Continue, or Stipulation and Order for such continuance in the Court's file.

⁵ Moreover, the versions of the Notice of Motion and Declaration attached to the Grove Decl. are not signed.